

Merchant Agreement

Effective 23 September 2026 · The Loyalty Loop

1. Scope of this Agreement

This Merchant Agreement applies in addition to our general Terms of Service and governs your use of The Loyalty Loop to operate a digital loyalty programme for your business (the "Merchant Services"). By creating a business owner account, you agree to this Agreement on behalf of the business you represent.

2. What we provide

We provide shop profiles, loyalty progress and reward management, staff access, customer-code lookup, analytics and customer communications subject to member preferences. We are moving shops to cumulative spend rewards with a pound threshold and staff-recorded purchases. Legacy features remain until the shop is moved; only use features currently enabled in your dashboard.

We submit participating shops for Fidel card-linked earning, but enrolment alone does not mean automatic earning is active. Payment-network matching and location activation must succeed. Some payment providers use shared identifiers that prevent reliable matching; those shops use supported manual purchase entry instead.

3. Your responsibilities

- Provide accurate information about your business, including your address, category, and contact details, and keep it up to date.
- Honour the rewards and thresholds you configure for genuine, eligible customers.
- Set staff permissions responsibly and revoke access promptly when a staff member leaves.
- Only contact your members with promotional messages where they have not opted out, and comply with applicable marketing and electronic communications law.
- Use customer data made available to you through the Service only to operate your loyalty programme, and in accordance with our Data Processing Addendum where you act as a data controller for your own members' loyalty data.

4. Fees

Any fees applicable to your use of the Merchant Services will be presented to you separately at sign-up or in your dashboard. Where no fee is shown, the current core Merchant Services are provided free of charge. We will give you reasonable advance notice before introducing or changing fees for your shop.

5. No lock-in

You may deactivate or cancel your shop at any time from your dashboard, with no minimum term and no cancellation fee. Once deactivated, your shop will no longer be visible to customers and new stamps or rewards can no longer be issued; existing customer records are handled in accordance with our Privacy Notice and Data Processing Addendum.

6. Verification and compliance

We may ask you to submit proof-of-business documents to obtain a verified badge, and may review or request further information at any time to ensure shops on the platform are genuine and comply with applicable law. We may decline or revoke a verified badge, or suspend a shop, if we reasonably believe this Agreement or applicable law has been breached.

7. Branding and intellectual property

You retain ownership of your shop's name, logo, and content you upload. You grant The Loyalty Loop a licence to display this material to customers as part of operating the Service. You must have the right to use any material you upload.

8. Liability

The Loyalty Loop is not responsible for disputes between you and your customers regarding rewards, product quality, or service at your shop. To the fullest extent permitted by law, our liability to you under this Agreement is limited to the fees you have paid us for the Merchant Services in the twelve months before the claim arose, except for liability that cannot be limited by law.

9. Termination

Either party may terminate this Agreement at any time as described in Section 5. We may also suspend or terminate your access immediately if you materially breach this Agreement, our Terms of Service, or applicable law.

10. Governing law

This Agreement is governed by the laws of England and Wales and is subject to the exclusive jurisdiction of the courts of England and Wales.

11. Contact us

Questions about this Agreement can be sent to developer@the-loyalty-loop.com.

12. Fidel merchant enrolment and permission

By accepting this Agreement on behalf of a shop, you authorise The Loyalty Loop to submit the shop and its locations to Fidel API for card-linked rewards and to declare your consent to that enrolment. You confirm you have authority to give this permission for the business and each submitted location. We may share the business name, address, location and contact details, payment provider and merchant identifiers you supply with Fidel and the relevant card networks for matching eligible transactions.

This permission covers matching purchases and refunds made by shoppers who separately consent to link their cards. It does not authorise collection of every customer's transactions, give you their full card details or replace shopper consent. Existing merchants must receive and accept this updated enrolment permission before we declare their consent to Fidel.

Keep location and payment-provider details accurate and tell us if they change. Do not submit identifiers for another business or locations you do not control. Activation timing and card-network coverage are not guaranteed. You may request removal from card-linked participation through support; we will coordinate removal and explain any pending reconciliation.

Only record genuine eligible purchases manually. Do not credit a payment already credited automatically. For a linked-card customer at an active card-linked shop, manual entries are for confirmed cash or unlinked-card payments, limited to three per customer per shop per day and at least 30 minutes apart when this feature is enabled. Honour valid rewards and assist with disputed purchases and refunds.